

COMMITTEE ON EDUCATION
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 4103
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter 4, article 5, Arizona Revised
3 Statutes, is amended by adding section 15-492, to read:

4 15-492. School buildings; enrollment to enrollment capacity
5 ratio; election eligibility

6 A. NOTWITHSTANDING SECTION 15-491, IF THE RATIO OF A SCHOOL
7 DISTRICT'S [ENROLLMENT TO THE SCHOOL DISTRICT'S] ENROLLMENT CAPACITY IS
8 LESS THAN [—] [FIFTY PERCENT], THE SCHOOL DISTRICT GOVERNING BOARD MAY
9 NOT CALL AN ELECTION TO EITHER:

10 1. DETERMINE WHETHER BONDS OF THE SCHOOL DISTRICT MAY BE ISSUED AND
11 SOLD.

12 2. CHANGE THE LIST OF CAPITAL PROJECTS OR THE PURPOSES AUTHORIZED
13 BY PRIOR VOTER APPROVAL TO ISSUE BONDS.

14 B. [THE RATIO OF] A SCHOOL DISTRICT'S [ENROLLMENT TO THE SCHOOL
15 DISTRICT'S] ENROLLMENT CAPACITY IS EQUAL TO THE SCHOOL DISTRICT'S AVERAGE
16 DAILY MEMBERSHIP AS PRESCRIBED IN SECTION 15-901 FOR THE PRIOR YEAR
17 DIVIDED BY THE NUMBER OF STUDENTS WHO CAN BE EDUCATED IN THE SCHOOL
18 DISTRICT'S EXISTING SCHOOL BUILDINGS, AS CALCULATED [PURSUANT TO SECTION
19 41-5702.01] [BY THE SCHOOL FACILITIES OVERSIGHT BOARD CONSISTENT WITH THE
20 MINIMUM SCHOOL FACILITY ADEQUACY GUIDELINES ESTABLISHED PURSUANT TO
21 SECTION 41-5711].

22 <<Sec. 2. Title 41, chapter 56, article 1, Arizona Revised
23 Statutes, is amended by adding section 41-5702.01, to read:

24 41-5702.01. School district buildings; academic square
25 footage; maximum student count

26 ON OR BEFORE — OF EACH YEAR, THE BOARD SHALL CALCULATE THE
27 NUMBER OF STUDENTS WHO CAN BE EDUCATED IN THE EXISTING SCHOOL BUILDINGS,
28 CONSISTENT WITH THE MINIMUM SCHOOL FACILITY ADEQUACY GUIDELINES

1 ~~ESTABLISHED PURSUANT TO SECTION 41-5711, FOR EACH SCHOOL DISTRICT IN THIS~~
2 ~~STATE. THE BOARD MAY NOT INCLUDE SQUARE FOOTAGE FOR ANY SCHOOL BUILDING,~~
3 ~~OR PORTION OF A SCHOOL BUILDING, THAT IS USED SOLELY FOR DISTRICT~~
4 ~~ADMINISTRATION, STORAGE OF VEHICLES OR OTHER NONACADEMIC PURPOSES IN THE~~
5 ~~CALCULATION PURSUANT TO THIS SECTION.>>~~

6 Enroll and engross to conform
7 Amend title to conform
And, as so amended, it do pass

MATT GRESS
CHAIRMAN

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